

Unequal Opportunity:
Desegregation at the University of Virginia School of Law, 1950–1960

Derek Tsai

HIUS 3501

Professor Sterling

April 28, 2026

I. INTRODUCTION

Qualified but Colored. Gregory Swanson faced this problem when he applied to the University of Virginia School of Law (UVA Law) in 1950. Despite his scholarly brilliance and ample qualifications for an LL.M. degree, the Board of Visitors rejected his application purely on the basis of race, which quickly prompted a lawsuit from Swanson. A federal circuit court later sided with Swanson and ordered UVA Law to promptly accept him as an LL.M. candidate. In the battle for equal educational opportunity, the law plays a major role in protecting the rights of minority populations; however, scholars often overemphasize the importance of legal progress since it is more concrete and easier to analyze. Indeed, it is the often-neglected history of social change and individuals' perception that produces lasting improvements. This essay aims to accurately document legal history while properly including the social and individual components of the Civil Rights Movement that played a major role in altering the landscape of American higher education. More specifically, this essay relies heavily on the case study of Gregory Swanson and John Merchant at the University of Virginia School of Law to expose the limitations of legal measures in achieving equal opportunity in higher education, and to highlight the importance of individual and social changes in bringing about a permanent pedagogical shift.

Swanson's victory was one of many victories civil rights lawyers secured in the federal courtroom during the 1940s and 1950s. Included in the list of victories were *Sipuel v. Board of Regents* (1948), *McLaurin v. Oklahoma State Regents for Higher Education* (1950), and most notably, *Sweatt v. Painter* (1950).¹ Common in all these cases was the NAACP's strategy of targeting specific cases in which there were separate and blatantly unequal conditions, producing a steady and less threatening path toward integration in higher education that was in line with *Plessy v. Ferguson*.²

¹ Carl W. Tobias, "Brown and the Desegregation of Virginia Law Schools," *University of Richmond Law Review* 39 (November 2004): 43.

² *Ibid.*, pp 41.

In 1954, the legal strategy for educational desegregation shifted drastically as a result of the *Brown v. Board of Education* decision, which overturned *Plessy* by declaring the separate-but-equal doctrine “inherently unequal.”³ Such a victory was heralded by civil rights activists and celebrated among minority communities, as legal desegregation was dealt a fatal blow. A decade later, the Civil Rights Act of 1964 acted as the final nail in the coffin for segregation — at least from a legal perspective. What occurred was the end of what scholars label *de jure* segregation or segregation by law. Indeed, these legal developments stripped away formerly discriminatory legislation and, over time, tore down many forms of institutional racism. However, what is often forgotten in this telling of history is the persistent forms of *de facto* segregation that continued to linger for decades after the Civil Rights Act. Although segregation by law was deconstructed, segregation in practice, or *de facto* segregation, survived in many forms.

Recall the story of Gregory Swanson, who was admitted to UVA Law and began working toward his LL.M. degree in 1950. Although he had decisively defeated segregation in the courtroom, the segregation in the classroom and in the UVA community remained strong. Swanson’s story does not end happily ever after with the strike of a gavel. Unfortunately, racism and social isolation at UVA Law forced Swanson to abandon his pursuit of a graduate degree. His story is one that highlights the limitations of legal measures. The many developments in the courtroom ought to be celebrated, and the work of civil rights lawyers is in no way diminished; however, these victories are only one part of the process toward equal educational opportunity.

This essay does not argue for the irrelevance of legal progress, nor does it argue for the individual sufficiency of societal change, rather the path toward equal opportunity is a two-pronged attack, relying on a bottom-up and a top-down approach — a dual approach. Both legal change and societal change are necessary, and it is only when both are present that advancements can be made.

³ *Brown v. Board of Education of Topeka*, 347 U.S. 483, 495 (1954).

Section II of this essay will analyze the case study of Gregory Swanson, the limitations of the law in bringing about equal opportunity, and the many preexisting societal barriers in higher education. Section III will present the major progress made when both legal victories and societal change work in tandem, arguing for the efficacy of the dual approach to desegregation and equal opportunity.

II. GREGORY SWANSON AND THE LIMITATIONS OF THE LAW

On January 19, 1950, Dean of UVA Law F.D.G. Ribble convened with the Committee on Graduate Studies to render a decision on Gregory Swanson's application. After deliberation, the Committee concluded that Swanson was "qualified for admission... [and] unanimously voted to admit the applicant." The Committee then deferred to the law school faculty to affirm the acceptance, which was approved with only one dissenting vote.⁴ Without any doubt, Swanson was a qualified and capable LL.M. candidate on the basis of his skillset, experience, and other components of his application. However, his abilities were not all that UVA evaluated. Despite the approval of the law school dean, law school faculty, and the Committee on Graduate Studies, the Board of Visitors voided the acceptance. In an approved statement, the Board explained that "the applicant is a colored man... [and] white and colored shall not be taught in the same schools."⁵ There was no attempt at a cover-up. The reason for Swanson's rejection was unmistakable — he was black.

Unfortunately for Swanson, the Board of Visitors had legal grounds for such a statement, with the Virginia state constitution forbidding "integrated government-supported education." On its face, the state constitution seems to explicitly require the actions of the Board. However, the state's Attorney General, J. Lindsey Almond Jr., contacted the Board before they rejected Swanson,

⁴ "UVA Law Faculty Meeting Minutes," Meeting Minutes, January 19, 1950, University of Virginia School of Law Special Collections.

⁵ "Swanson v. Board of Visitors Agreed Statement of Facts," Judicial Papers of Judge John Paul, August 1950, Mss 81-7, Box 42, University of Virginia School of Law Special Collections.

informing them that the state's constitutional provisions, prohibiting integrated education, did not apply to graduate schools.⁶ Knowing that the state's constitution did not apply, the Board still proceeded to reject Swanson on the basis of race, citing a nonexistent constitutional duty. During court proceedings, Almond wrote to the court and reaffirmed what he had told the Board months prior: that the state's constitutional prohibition on desegregated learning did not apply to law schools. With Almond's interpretation and the precedent set in *Sweatt v. Painter*, the court decided in favor of Swanson and ordered his acceptance to UVA Law. The court also held that rejecting an applicant purely on the basis of race violated the Fourteenth Amendment's equal protection clause, preventing UVA Law from rejecting future candidates due to race.

Although Swanson's legal victory marked an important moment in legal history, the decision was not the final chapter in his story at UVA Law. In his first year at UVA, Swanson "was not allowed to live or eat on [Grounds], nor was he allowed to attend social functions or sports events."⁷ In addition to such isolation, he also faced "death threats and racial shunning,"⁸ which forced him to leave the program and transfer to Howard University, a historically black college that provided the proper support systems for Swanson to thrive. The hostile environment and perception of racism and isolation overshadowed the decisive legal victory just a year prior, putting on full display the limitations of using law to garner equal opportunity. Perhaps Swanson was legally granted equal opportunity, but by no means was his opportunity equal in practice. The courts can continue to decide in favor of minority learners and mandate desegregated education, but all of this is nullified if campus environments oppress, isolate, and forcibly remove racial minorities like Swanson.

⁶ Tobias, "Brown and the Desegregation of Virginia Law Schools," 46–47.

⁷ Taj'ullah Sky Lark, "Unlocking Doors: How Gregory Swanson Challenged the University of Virginia's Resistance to Desegregation. A Case Study," *Spectrum: A Journal on Black Men* 5, no. 2 (2017): 79.

⁸ Maurice Apprey and Shelli M. Poe, *The Key to the Door: Experiences of Early African American Students At the University of Virginia* (University of Virginia Press, 2017), 6.

At the time that Swanson matriculated into UVA Law, the social landscape on Grounds consisted of racism, harassment, and even violence. The wife of a UVA professor, Sarah Patton Boyle, was a civil rights activist who publicly supported Swanson's fight, and as a result, "a Ku Klux Klan cross was burned on [her] lawn."⁹ In another act of racism turned violent, UVA professor Paul Gaston was "severely beaten while participating in a 1963 desegregation sit-in at a Charlottesville restaurant."¹⁰ Racism was not always violent, but it was still put on full display in many spaces at UVA to discourage and demoralize minority students. A blatant example of this was the hanging of Confederate flags at fraternity houses and even at school dormitories.¹¹ Additionally, the Corner — a staple in the UVA community where students shop, eat, and socialize — was off-limits to students of color. As John Merchant, a black law student, recalls, "Owners would not allow a black to enter their stores or remain there if you did enter. Any effort made to sit in a restaurant and have a burger and fries exposed you to serious bodily harm."¹² No wonder Swanson left after a year. Threats of violence, symbols of hate, and social isolation were conditions not conducive to a quality education. Despite the court order, equal opportunity remained glaringly absent at UVA.

Not only did the Swanson lawsuit fail to provide equal opportunity for Swanson, but the ruling that UVA Law could not reject future students on the basis of race also failed to yield much fruit. Despite the court's explicit interpretation of the state constitution's anti-integration provisions as not applicable to graduate programs, UVA Law continued to remain segregated for the most part.¹³ In fact, law schools in Virginia as a whole failed to include black students. At the two publicly supported legal institutions, UVA and William & Mary, "desegregation's pace after 1950 was not expeditious... and was even slower in the private institutions."¹⁴ Even with the *Brown* decision in 1954,

⁹ Apprey and Poe, *The Key to the Door: Experiences of Early African American Students At the University of Virginia*, 7.

¹⁰ Apprey and Poe, *The Key to the Door: Experiences of Early African American Students At the University of Virginia*, 7.

¹¹ Apprey and Poe, *The Key to the Door: Experiences of Early African American Students At the University of Virginia*, 2.

¹² Apprey and Poe, *The Key to the Door: Experiences of Early African American Students At the University of Virginia*, 17.

¹³ Tobias, "Brown and the Desegregation of Virginia Law Schools," 48.

¹⁴ Tobias, "Brown and the Desegregation of Virginia Law Schools," 51.

desegregation was at best “characterized as gradual in the government-sponsored [law] schools.”¹⁵ On a broader level, the impact of court decisions was also limited in other fields of graduate study in Virginia, with “neither *Brown I* nor *Brown II* [leading] to a change in policy or practice.”¹⁶ Swanson’s legal victory seemed like a major turning point in graduate education in Virginia; however, its impact, and even the impact of the Supreme Court in *Brown*, was truly limited both in Swanson’s life and in the overall desegregation of the state’s graduate programs. Although the decisions were limited in bringing about equal opportunity and social barriers remained prevalent at UVA, Swanson’s victory and the *Brown* decision did serve a paramount purpose in clearing the legal hurdle for future generations and creating a foundation from which future students could build.

The case study of Swanson’s to enter UVA Law and his subsequent social struggles is one not uncommon to minority students in American higher education as a whole. A study on public universities found that “even though African-American student access has increased...the campus community and academic environment of recently desegregated institutions constituted a vestigial barrier to African-American student retention and performance.”¹⁷ The first step was accomplished by the law, with *Brown I* and *Brown II* prohibiting public segregation, and the Civil Rights Act of 1964 using the power of federal funding to dismantle racial discrimination in public educational programs. However, the concerning poor performance of minority students exposes an incomplete process that requires efforts on the part of communities and individuals. Now that *de jure* segregation has been mostly brought to an end by the diligent efforts of civil rights activists and lawyers, *de facto* segregation in the form of hostile campus environments is the next target to bring about pedagogical progress.

¹⁵ Tobias, “Brown and the Desegregation of Virginia Law Schools,” 51.

¹⁶ Peter Wallenstein, *Higher Education and the Civil Rights Movement: White Supremacy, Black Southerners, and College Campuses* (University Press of Florida, 2008), 46.

¹⁷ John B. Williams, *Race Discrimination in Public Higher Education: Interpreting Federal Civil Rights Enforcement 1964–1996* (Praeger Publishers, 1997), 170.

To believe that legislation and court decisions alone can bring about equal opportunity is foolish and evidently insufficient. Such insufficiency was exposed in the individual story of Gregory Swanson, but also in the stories of institutions across America. In a Swanson-esque manner, black students were legally integrated into universities, but when faced with blatant racism, discrimination, and isolation, they were practically forced to leave. At the University of Massachusetts and Rutgers University, serious racial conflicts on the part of students and faculty resulted in an immediate plummet in black enrollment — a perfect parallel to Swanson’s story, just on a larger scale.¹⁸ It is easy to claim the legal victories as enough for equal opportunity, and on its face, these decisions seem to do the job. However, equal opportunity is not just a theory; it is something that must be realized in actuality, and even in light of these laws and court orders, minority students were forced out of institutions, exposing a condition of unequal opportunity. Failing to address the societal problems that hinder the effectiveness of the law is one of many “active strategies for the denial of civil rights.”¹⁹

Gregory Swanson and countless other minority students faced the societal and personal struggles of a hostile college campus, which negated the perceived progress of courtroom victories and legislative triumphs. The work of civil rights activists and lawyers is on full display in securing these *de jure* successes, but their work is in vain if the final goal of equal opportunity remains unfulfilled. In the post-*Brown* era, *de facto* segregation was the primary obstacle to minority students seeking higher education. The law is limited, and only so much can be done through a top-down approach to desegregation. However, there is much reason for hope in this era. The law may be limited, but it did lay a foundation for minority students to enter predominantly white spaces of higher education, and with the legal obstacles being removed, the attention of activists could shift to the next goal of

¹⁸ Laurence R. Marcus, *Fighting Words: The Politics of Hateful Speech* (Praeger Publishers, 1996), 92.

¹⁹ Williams, *Race Discrimination in Public Higher Education: Interpreting Federal Civil Rights Enforcement 1964–1996*, 181.

developing the societal infrastructure that, when coupled with legal victories, would produce adequate conditions for equal opportunity.

III. JOHN MERCHANT AND A DUAL APPROACH

Following in the footsteps of Gregory Swanson, John F. Merchant matriculated into UVA Law in 1955 as a J.D. candidate. In no small part, Swanson's lawsuit a few years prior played a major role in tearing down the *de jure* barriers to Merchant's acceptance to a historically segregated school. Indeed, the courtroom victories played a major, but incomplete, role in the fight for equal opportunity, as post-*Brown* college campuses across America remained highly racist, unaccepting, and isolating. On Merchant's first day, he encountered a Confederate flag in the window of a dorm, and he recalled that "an eerie feeling of being in a 'foreign country' appeared and would not go away."²⁰ The UVA that Merchant experienced was very similar to the UVA that isolated and forced Swanson to leave in 1951, but somehow Merchant survived and became the first black graduate of UVA Law, which begs the question: What changed?

For the most part, the legal structures for desegregation remained mostly constant between 1950 and 1955. Both Swanson and Merchant were protected by the federal court order prohibiting UVA Law from rejecting applicants purely on the basis of race.²¹ The only development was the *Brown I* decision, but recall that well into the 1960s, "neither *Brown I* nor *Brown II* led to a change in policy or practice [at UVA],"²² thus having virtually no impact on Merchant. This creates an opportunity to compare the case studies of Swanson and Merchant, with both receiving the legal means to attend UVA but experiencing drastically different outcomes. Although the legal progress of desegregation

²⁰ Apprey and Poe, *The Key to the Door: Experiences of Early African American Students At the University of Virginia*, 2.

²¹ Tobias, "Brown and the Desegregation of Virginia Law Schools," 47.

²² Wallenstein, *Higher Education and the Civil Rights Movement: White Supremacy, Black Southerners, and College Campuses*, 46.

remained mostly stagnant, the distinct divergence between Swanson and Merchant was in their experience with the community and classmates.

Before exploring the societal change that produced an environment capable of cultivating success, it is important to note that by Merchant's graduation, UVA was not a place of progressive racial thought, nor was the fight to dismantle *de facto* segregation over. Rather, his story is one that highlights the necessity of a dual approach and the importance of societal factors in the fight for equal opportunity in higher education. Merchant entered into an environment filled with hostility, feeling like a foreigner as the only black student at UVA Law and as an outsider without any connections in Charlottesville.

In his first year, "a support system didn't exist... [and Merchant] was alone in his blackness," which almost led him to the same fate as Swanson. Just as hope was running out, Merchant connected with three black families in Charlottesville, who "provided the respite needed to maintain a sense of mission, direction, and courage."²³ With families who were dedicated to creating a space of peace, friendship, and acceptance, he finally had a support system that Swanson lacked during his first year. Despite the isolation at UVA Law and the prevalent racism around Grounds, Merchant could endure it because he was not completely alone. He had a refuge to escape to, a home to refuel, friends to bear his burdens — he had a community. The presence of a community was the major difference between Swanson and Merchant, and as a result, Merchant could persevere through the many societal burdens of being a black student at UVA. Among these burdens were law school students who generally accepted him but also neglected his presence, especially during his first year. Fortunately, the culture of UVA Law was about to radically change for the good of Merchant and equal opportunity.

Merchant spent most of his first year alone and only found community outside of UVA Law, with Charlottesville families opening up their homes to black students; however, in his second and

²³ Apprey and Poe, *The Key to the Door: Experiences of Early African American Students At the University of Virginia*, 3.

third years, students began to interact with him, and a major shift in campus culture was underway. This shift is best presented in Merchant's interaction with the law school student council. During his first year, the student council shunned Merchant, excluding him from planned social events — a clear example of *de facto* segregation. This was hardly surprising to Merchant, and he quickly moved forward with his studies, but in his second year, the student council requested a meeting with him to apologize for excluding him, which Merchant saw as “an important step for diversity.”²⁴ The following year, the student council met with Merchant again and asked for his help in organizing social events at locations that would allow law school students of all races to participate. In just three years, the culture of UVA Law shifted from *de facto* segregation and neglect to acceptance and active efforts to include Merchant in social events. The student leadership of UVA Law “was adamant about its willingness to help break down existing social barriers,” which led to Merchant's evaluation of his time at UVA Law to be “positive.”²⁵

Additionally, Merchant's inclusion in athletics played a major role in fostering a sense of belonging among his law school peers. As he explains it, “The issue [in athletics] is, ‘Can you play and help us win?’ not where did your parents come from.”²⁶ The realm of sports was a place to bond, compete, and, in a sense, prove one's belonging. Merchant utilized this to build relationships, which, in no small part, strengthened him while being the only black student at UVA Law. Further, Merchant took advantage of UVA Law's strong softball culture by participating and winning the university softball championship in 1957. On one occasion, Merchant and his team of law school students were forced to play on a different field due to the color of his skin, which the *Virginia Law Weekly* criticized in a front-page story. Merchant recounts this experience and the support of law school peers to publicly criticize discrimination as “important memories... [of] very positive action by people who

²⁴ Apprey and Poe, *The Key to the Door: Experiences of Early African American Students At the University of Virginia*, 15.

²⁵ Apprey and Poe, *The Key to the Door: Experiences of Early African American Students At the University of Virginia*, 15.

²⁶ Apprey and Poe, *The Key to the Door: Experiences of Early African American Students At the University of Virginia*, 16.

cared.”²⁷ Through athletics, Merchant found another way of belonging, and it produced individual agents who supported his presence.

From isolated and hopeless to cared for and optimistic, Merchant’s experience at UVA Law is one of drastic societal change, which produced a drastically different outcome. While Gregory Swanson suffered through a year of harassment, racism, and threats without any support, Merchant bore those burdens with the help of Charlottesville’s black community and his fellow classmates. Two black students with the same legal support but radically different social experiences. Such is the powerful effect of a dual approach to equal opportunity. The law without social support results in the fate of Gregory Swanson. When legal precedent and positive social infrastructure work in tandem, the natural product is radical change and progress. Comparing the stories of Swanson and Merchant highlights the limitations of the law and emphasizes the pedagogical progress resulting from a combination of a top-down and bottom-up approach.

IV. CONCLUSION

The law is important, and a major pillar of the civil rights movement, but its significance is often overemphasized at the cost of neglecting societal progress. The distinction between *de jure* and *de facto* segregation is essential to the achievement of equal opportunity in higher education. Equal opportunity is not a political theory; it is something that is accomplished in reality. I do not mean to diminish the work of civil rights lawyers and activists in dismantling discriminatory precedent and legislation, but the *de jure* victory is just one part of a dual approach. In isolation, the law is limited, and its effects are hindered by the prevalence of *de facto* segregation, as is the story of Gregory Swanson’s time at UVA Law. However, when the law is coupled with societal change that allows for proper support systems to develop, the pedagogical impacts of the law are multiplied, as is the story

²⁷ Apprey and Poe, *The Key to the Door: Experiences of Early African American Students At the University of Virginia*, 17.

of John Merchant. The desegregation of UVA Law provides a model for interpreting the effectiveness of law, and in doing so, the dual approach is shown to be the most effective in producing equal opportunity. One is not more important than the other; the law is not more effective than the people, nor are the people more effective than the law — balance is the key. It takes both legal progress and societal change for equal opportunity to be realized.

BIBLIOGRAPHY

- Apprey, Maurice, and Shelli M. Poe. *The Key to the Door: Experiences of Early African American Students At the University of Virginia*. University of Virginia Press, 2017.
- Brown v. Board of Education of Topeka, 347 U.S. 483 (1954).
- Marcus, Laurence R. *Fighting Words: The Politics of Hateful Speech*. Praeger Publishers, 1996.
- Sky Lark, Taj'ullah. "Unlocking Doors: How Gregory Swanson Challenged the University of Virginia's Resistance to Desegregation. A Case Study." *Spectrum: A Journal on Black Men* 5, no. 2 (2017): 71–84.
- "Swanson v. Board of Visitors Agreed Statement of Facts." Judicial Papers of Judge John Paul. August 1950. Mss 81-7, Box 42. University of Virginia School of Law Special Collections.
- Tobias, Carl W. "Brown and the Desegregation of Virginia Law Schools." *University of Richmond Law Review* 39 (November 2004): 39–52.
- "UVA Law Faculty Meeting Minutes." Meeting Minutes. January 19, 1950. University of Virginia School of Law Special Collections.
- Wallenstein, Peter. *Higher Education and the Civil Rights Movement: White Supremacy, Black Southerners, and College Campuses*. University Press of Florida, 2008.
- Williams, John B. *Race Discrimination in Public Higher Education: Interpreting Federal Civil Rights Enforcement 1964–1996*. Praeger Publishers, 1997.